



City of Medford

Rules of the
School Committee

2022-2023

Adopted March 21, 2022

1. The Mayor will be the chair of the School Committee pursuant to the [City of Medford Charter](#).
2. The School Committee will meet on the second Monday after January 1st after each biennial election, at a time to be designated for the purpose of an organizational caucus. This meeting will be scheduled by the chair. The Superintendent will work to ensure that this scheduling occurs as this rule requires.
3. A vice-chair will be elected by roll call vote.
4. A secretary will be elected by a roll call vote.
5. The School Committee will adopt rules set out in this document.
6. The School Committee will review the Massachusetts Association of School Committee's [Member Handbook Code of Ethics](#) at the organizational meeting.
7. The School Committee will review the Massachusetts Association of School Committee's [Roles and Responsibilities of School Committee Members](#) at the organizational meeting.
8. The School Committee will adopt [The Function of the Medford School Committee](#) by a roll call vote.
9. The regular meetings of the School Committee will be held on the first and third Monday evenings at 6:00 PM during the months of September through June [[Policy: BE](#)].
10. There will be no regular meetings in the months of July and August [[Policy: BE](#)].
11. The Superintendent will send out a broadcast memo to all members each week in August.
12. Meeting dates that coincide with non-school days according to the approved academic calendar will be moved to the following Monday [[Policy: BE](#)].
13. The Superintendent will submit a schedule of regular meetings to the School Committee for approval during the month of April for the following school year.
14. The Superintendent or Mayor has the discretion to cancel a meeting and notify all members as soon as possible.
15. The chair of a subcommittee may cancel or otherwise postpone a subcommittee meeting. The chair is responsible for the notification of subcommittee members, the Superintendent, and any invited guests.
16. The Superintendent will notify the City Clerk immediately following receipt of any proper cancellation of a meeting.
17. In the event of an emergency due to extraordinary circumstances, the requirement that notification of cancellation is provided in writing may be waived, and members may notify the Superintendent of their desire to cancel a meeting by telephone, email, or in person. Any verbal request for cancellation must be followed by a written request.

18. Special meetings of the School Committee may be called by the chair and will be called by the Superintendent upon the written request of not less than three members of the School Committee. No less than forty-eight (48) hours (excluding Saturday, Sundays, and holidays) notice of a special meeting will be given to each member. The Superintendent will notify all members by telephone, email, or in-person and will follow any verbal notification with a written notification of such meeting to each member. The question or proposals for consideration will be specifically stated in the notice, and no other matter will come before the School Committee at such a meeting. The time and place of special meetings will be designated in the notice [[Policy: BE](#)].
19. School Committee of the Whole meetings will be scheduled on an as-needed basis for an in-depth discussion of specific topics. At a School Committee of the Whole meeting, no votes will be taken except upon a motion to adjourn. The chair and the Superintendent will jointly determine the agenda for a School Committee of the Whole meeting in consultation with the other members of the School Committee.
20. The chair will schedule one annual joint meeting of the School Committee and the City Council.
21. Workshops or Retreats may be scheduled on an as-needed basis. Votes may not be taken except upon a motion to adjourn at a retreat. The meeting will not be broadcast or recorded; however, being a meeting in public, the meeting will allow members of the public to attend. The public will not be offered an opportunity to speak. The chair and the Superintendent will jointly determine the agenda for a retreat in consultation with other members of the School Committee.
22. The chair of the School Committee and if unavailable the chair will delegate the vice-chair, when needed, to have a standing meeting with the Superintendent before any scheduled meeting, workshop, or hearing to collaborate on agenda setting and to help focus both the agenda of the School Committee and the Superintendent on the goals of the School Committee. Such standing meetings will be held by agreement between the Superintendent and the chair or vice-chair if delegated.
23. The Minutes of the School Committee will be published and distributed under the direction of the Superintendent. Minutes will include the date, time, place; members present or absent and the time when a member arrives late or leaves early; and a complete record of all decisions made and actions taken at each meeting, including a record of all votes and a summary of the discussions on each subject. On all matters on which there has been a roll-call vote, the minutes will reflect the votes of the individual members, as well as the member that motioned and seconded. A list of all documents and other exhibits used at the meeting must also be included in the minutes.
24. Minutes should be approved prior to being released to the public, in accordance with the [Open Meeting Law](#) [[MGL: c. 30A, §§18 through 25](#)].
25. The School Committee will maintain active membership in state and national school committee associations. Members of the School Committee who travel or attend meetings and conferences at school department expense will be required to file with the Superintendent within sixty (60) days following the close of such meetings and conferences a written statement of their expenses,

including without limitation, copies of all receipts for expenses incurred in connection with such attendance for the purposes of reimbursement.

26. The chair of the School Committee, subject to approval by the School Committee, will establish standing committees in the first month of each term [[Policy: BDE](#)].
27. Subcommittees will be composed of three Members. Subcommittee appointments and selection of the chair for each subcommittee will occur during the Organizational meeting of the School Committee.
28. Subcommittees will only meet at the direction of the School Committee to consider a specific policy matter.
29. Subcommittee meetings will be scheduled by the chair of the subcommittee in consultation with the members.
30. Subcommittees will provide policy recommendations or other matters for consideration by reporting out as favorable or unfavorable to the School Committee at a regular meeting.
31. Special subcommittees and ad hoc subcommittees may be established as proposed by the chair and confirmed by a vote of the School Committee with such membership and duties, and for such duration as the School Committee deems fit. The School Committee will appoint members from the School Committee membership of any special subcommittee or ad hoc subcommittee.
32. The School Committee may establish advisory committees [[Policy: BDE](#)].
33. At the beginning of each regular meeting of the School Committee, the attendance taken will include the student representative. The secretary will call for the 'student representative' or, if the secretary knows the name of the student representative that will be attending the meeting, may call for the specific name. The student representative's attendance will be recorded with the members as "student representative name" if the student representative is present. If the student representative is not present, the recording will say, "student representative absent." The count of present and absent will not include the student representative.
34. Student representatives serve as non-voting members of the School Committee. Student representatives will be encouraged to participate in School Committee meetings [MGL: [c 71 §38M](#)].

Rules of Procedure

35. All School Committee business, including correspondence, must be received in the Office of the Superintendent not later than 12:00 PM on the Tuesday before the day of the next regular meeting of the School Committee, and the agenda, including the Superintendent's recommendations, motions by members, reports of sub-committees and other communications and reports to School Committee, will be delivered to the School Committee by 5:00 PM on the Friday before the regular meeting. Members of the School Committee will make every effort to ask questions about the Superintendent's recommendations or supplemental recommendations to the Superintendent or their designee on the Friday preceding the Monday meeting.

36. At every regular meeting of the School Committee, the order of business will be set by policy [BEDB - Agenda Creation and Format for Regular Meetings of the School Committee](#):
- a. Roll Call for Attendance of Members and the Student Representative
 - b. Salute the Flag
 - c. Consent Agenda
 - d. Report of Subcommittees
 - e. Report of the Superintendent
 - f. Presentations of the Public
 - g. Continued Business
 - h. New Business
 - i. Reports Requested
 - j. Condolences
 - k. Next Meetings
 - l. Adjournment
37. At the first meeting each month of the School Committee the agenda will include a ‘Good of the Order’ following the Consent Agenda item. The purpose of this item is to allow the members an opportunity to speak about the functioning of the School Committee with the intent of continuous improvement.
38. The School Committee will follow the order of business as established by the agenda, except under a suspension of the rules to expedite School Committee business or to accommodate individuals appearing before the School Committee.
39. The agenda will include a listing of all recommendations being brought forward. Such listing will be formatted in accordance with policy [BEDB - Agenda Creation and Format for Regular Meetings of the School Committee](#). The agenda also will include a listing of all resolutions, reports, and other communications and reports to the School Committee.
40. The agenda will be included in the Notice of Meeting.
41. The Superintendent will number each agenda item received in the format year-number, such as 2020-124, which means the 124th item received in the calendar year 2020. This number will be known as the ‘item number.’ The year is the calendar year and reflects when the item was received by the Superintendent.
42. Agenda for all regular meetings held by the School Committee will be available to the public and the press. Copies of the agenda will be filed with the Office of the City Clerk and posted on the website of the School Committee no later than the Thursday prior to the meeting at 4:30 PM. Copies of the agenda will be made available at the Medford Public Schools Office of the Superintendent, the main office at each Medford Public School building, and posted on the Medford Public Schools website.
43. Members may add items to the agenda pursuant to the [Add Item to the Agenda Procedure](#). Members may use the [google form](#) designed to assist with procedure compliance but the use of the [google form](#) is not required.

44. Members may request ad hoc reports pursuant to the [Ad Hoc Request Procedure](#). Members may use the [google form](#) designed to assist with procedure compliance but the use of the [google form](#) is not required.
45. Except in an emergency, notices for all meetings of the School Committee will be filed with the Office of the City Clerk and posted on the School Committee website at least forty-eight (48) hours, excluding Saturdays, Sundays, and holidays, prior to such meetings. Except in an emergency, copies of the Notices of Meetings will be made available at the Medford Public Library, Medford Public Schools Office of the Superintendent, and on the School Committee website at least forty-eight (48) hours, excluding Saturdays, Sundays, and holidays, prior to such meetings.
46. The first time that a policy recommendation appears on the agenda, the School Committee will hear public comment on the item and engage in discussion and comment on the policy recommendation (hereinafter referred to as the “first reading”). The policy, if passed, will be placed on the next regular meeting agenda (hereinafter referred to as the “second reading”). In accordance with the provisions of rule 75, the School Committee may suspend the rules to adopt a policy upon first reading. A policy that is affirmed by a majority vote at the second reading (or upon suspension of the rules) will become the policy of the School Committee immediately unless another date is specified.
47. Four members of the School Committee will constitute a quorum for the transaction of business. The chair, or in their absence, the vice-chair, will call the meeting to order. In the absence of a quorum, the presiding officer, as the case may be, will cause the Superintendent to determine whether there are sufficient members in the meeting to provide a quorum. Should the answer be in the negative, the presiding officer will be required to rule “no quorum” and adjournment of the meeting will be taken without the transaction of any business, subject to further call in accordance with the rules of the School Committee.
48. All meetings of the School Committee, and any of its subcommittees, will be open to the public and press; however, the School Committee has the right to sit in an executive session, closed to the public and the press, when it meets the following procedural conditions imposed by state law:
- a. The School Committee will first convene in an open session for which notice has been given.
 - b. The chair, or in their absence, the presiding member, will state the purpose for the executive session, stating all subjects that may be revealed without compromising the purpose for which the executive session was called.
 - c. The chair, or the presiding member, will state whether the School Committee will reconvene in open session after the executive session.
 - d. A majority of the members must vote to enter the executive session, with the vote taken by roll call and recorded in the official minutes.
 - e. The School Committee will enter executive session only to:
 - i. discuss the reputation, character, physical condition, or mental health rather than the professional competence of an individual, or to discuss the discipline or dismissal of, or complaints or charges brought against, a public officer,

employee, staff member, or individual. The individual to be discussed in such executive session shall be notified in writing by the public body at least 48 hours prior to the proposed executive session; provided, however, that notification may be waived upon written agreement of the parties.

- ii. conduct strategy sessions in preparation for negotiations with nonunion personnel or to conduct collective bargaining sessions or contract negotiations with nonunion personnel.
- iii. discuss strategy with respect to collective bargaining or litigation if an open meeting may have a detrimental effect on the bargaining or litigating position of the public body and the chair so declares.
- iv. discuss the deployment of security personnel or devices or strategies with respect thereto.
- v. investigate charges of criminal misconduct or to discuss the filing of criminal complaints.
- vi. consider the purchase, exchange, lease, or value of real property, if the chair declares that an open meeting may have a detrimental effect on the negotiating position of the public body.
- vii. comply with, or act under the authority of, any general or special law or federal grant-in-aid requirements.
- viii. consider or interview applicants for employment or appointment by a preliminary screening committee if the chair declares that an open meeting will have a detrimental effect in obtaining qualified applicants; provided, however, that this clause shall not apply to any meeting, including meetings of a preliminary screening committee, to consider and interview applicants who have passed a prior preliminary screening.
- ix. meet or confer with a mediator, as defined in [MGL Chapter 233 §23C](#), with respect to any litigation or decision on any public business within its jurisdiction involving another party, group or body, provided that: (a) any decision to participate in mediation shall be made in open meeting session and the parties, issues involved and purpose of the mediation shall be disclosed; and (b) no action shall be taken by any public body with respect to those issues which are the subject of the mediation without deliberation and approval for such action at an open meeting session.

49. The presiding officer will preserve order in the meetings and decide all questions of order, subject to an appeal to the School Committee by any member, which appeal will be decided without debate.

50. Regular meetings will begin promptly at 6:00 PM. (assuming a quorum). No meeting of the School Committee will go beyond 9:30 PM. If the School Committee is still meeting at 9:30 PM, the chair will ask if there is a motion to recess the meeting until a time certain or if there is a motion to extend the meeting beyond 9:30 PM in the evening. A motion to recess to a time certain requires a majority vote. A motion to continue the meeting requires a two-thirds vote.

51. Public comment will be limited to three (3) minutes per individual and will be limited to those matters on the agenda. The chair may limit comment to two (2) minutes based on the number of individuals wishing to speak. The chair will announce the time limit prior to the public comment period at every regular meeting. The public will also be encouraged to submit their comments in writing either by e-mail or by mailing them to the Superintendent. Written comments will be forwarded to all members of the School Committee by the secretary of the School Committee in a timely fashion. See policy [BEDH - Public Comment and Presentations of the Public](#) for the full language of this policy.
52. Public comment will not take place at roundtable meetings or at retreats of the School Committee, where no matter being discussed may be finally considered, in that no votes may be taken. Written comments will be accepted and made part of the record of the meeting. The opportunity for the public to comment on items discussed at roundtable meetings or at retreats will be at the regular or special meeting at which the item may be considered for action by the School Committee.
53. The public may present at a regular meeting of the School Committee. The complete procedure the public must follow to submit a presentation is detailed in policy [BEDH - Public Comment and Presentations of the Public](#).
54. To promote efficient, orderly meetings and in keeping with Robert's Rules of Order, the chair will work to:
 - a. Refer new matters that need further study or questioning to the Superintendent or any other subcommittee agreed upon by the School Committee and the Superintendent;
 - b. Repeat the motion on the floor to make sure all members know what is being discussed and/or voted;
 - c. Allow enough time after a main motion is introduced for members to bring in amendments and other types of motions as outlined in Robert's Rules of Order;
 - d. Call for a second, if one has not been heard, and announce failed motions and motions without a second so that it is clear that such motions have failed or do not have a second; and
 - e. Promote a courteous and respectful tone throughout the meetings.
55. Members are reminded that the use of electronic devices during meetings for the purpose of communications of matters related to our meetings is not permitted. Our meetings are meetings in public, and all communications during our meeting time on related matters are public communications and subject to public records requests.
56. Debate on motions will be limited to five (5) minutes per member in the first round and two (2) minutes in the second round. The chair will keep time. The chair may change the amount of time allotted to each member and may elect to use a "round-robin" format to promote a more efficient debate. The chair will work to make sure comments are germane to the motions on the floor.
57. The names of members introducing motions and resolutions will be recorded in the School Committee records. Motions and resolutions will require a second, and no debate will be in order until the chair states the immediately pending question.

58. Motions to adjourn, to lay on the table or take from the table, and to close debate will be decided without debate unless unanimous consent of the School Committee is granted a member to speak. The motion to close debate will be put in this form, "Move the question?" The adoption of this question by a two-thirds vote or unanimous consent will end debate and bring the School Committee to a vote on pending amendments if there are any, and then upon the main question.
59. A motion to recess will always be in order, except when a member has the floor or a question has been put and not decided.
60. A motion to recess must include the duration of the recess as may occur for a short break or recess to a time certain when a meeting will be resumed, such as a future date for a meeting that cannot continue at this time.
61. A recess to a time certain creates a continuation of the current meeting and therefore, there is no adjournment.
62. A recess to a time certain requires that the date and time be identified during the meeting when it is offered and may occur after the motion has passed but not prior to recessing the meeting.
63. A meeting in recess to a time certain requires the chair to say, "This meeting is recessed to" and the date and time decided upon by the School Committee.
64. A motion to adjourn will always be in order, except when a member has the floor, or a question has been put and not decided.
65. A meeting is not adjourned at the conclusion of the voting but rather is adjourned when the chair says, "This meeting is adjourned."
66. A motion to rescind is used to reconsider a decision adopted by the School Committee at any time other than the current meeting (when a motion to reconsider is appropriate). There is no time limit on when this motion may be made and any member regardless of how they voted on the original decision may offer this motion to rescind unless the decision has been executed. Any part of a prior decision that has not yet been executed may be rescinded.
 - a. To rescind something previously adopted by a majority vote, the motion must be placed on the agenda following rule 43.
 - b. The motion should include a description or reference to the decision in question. Another member then must second the motion. The chair restates the motion to rescind and asks for debate. During debate, any member may propose amendments (changes that are greater than the scope of notice are not in order). After full debate, the vote is taken on rescinding the motion.
 - c. If the original motion has been acted upon and that action cannot be undone, the motion cannot be rescinded. However, any unexecuted part could be rescinded or amended.
 - d. For a complete description of the characteristics of the rescind/amend options of something previously adopted, see Robert's Rules of Order.
67. The motion to reconsider can be made by a member when they wish to ask the School Committee to revisit a previous decision made at the same meeting. Reconsider is most commonly applied to

main motions, but some subsidiary and incidental motions are also subject to reconsideration. The exceptions and uses for the motion can get complicated. But to keep things simple, remember that an affirmative vote cannot be reconsidered if it has been partly carried out, or if in the nature of a contract, the party to the contract has already been notified.

The motion to reconsider is useful when the committee realizes that they might have made a decision without proper debate or if information is received later in the meeting that impacts an earlier decision.

The effect of the motion to reconsider, if adopted, is that debate resumes right where the board left off prior to its original vote. To prevent abuse by those who simply didn't like the outcome of a vote the motion to reconsider has three special characteristics:

- a. The motion can only be made by someone who voted on the prevailing side -- voted yes on a motion that passed or no on a motion that did not.
 - b. The making of the motion can only be made at the same meeting the decision to be reconsidered was made.
 - c. A motion to reconsider ranks higher than its original consideration. What this means is that a member can move to reconsider a vote at any time during a meeting, even when another issue is pending. However, since it would not be "in order" to consider a motion at that time the secretary is instructed to record the motion as made and seconded. The motion can then be "called up" for consideration at a later time in the meeting when it would be "in order." The "calling up" of a motion to reconsider can be done by any member and does not need a second since that already took place when the motion was originally made. This is useful since it may be necessary to let members know there is a desire to reconsider a decision even if it can't be taken up at that moment.
 - d. To properly handle a motion to reconsider, a member who voted on the prevailing side is recognized by the chair and moves to reconsider the vote; any other member seconds the motion. The chair restates the motion "to reconsider" as pending and asks for debate. Once debate is over, members vote on the motion to reconsider. If the motion to reconsider passes, the original (reconsidered) motion is brought back before the assembly to be voted on again. If the motion to reconsider is lost, it is the only vote taken and business proceeds to the next item on the agenda. Only a majority vote is needed to adopt the motion.
68. The Superintendent will retain in his or her possession all papers upon which action has been taken by the School Committee at any meeting. Additionally, all documents and other exhibits used at any meeting must be retained.
69. A majority of the members present will suffice to pass any motion or resolution (except as otherwise defined), but motions calling for the appropriation or expenditure of money will require the affirmative vote of four (4) members.
70. The call of the roll will be taken on any question whenever a member will so request, when authorizing the spending of monies, or is required by law. The order of roll call will be alphabetical by the last name of the members, with the chair voting last.

71. The chair or the presiding officer in the absence of the chair will have the sole authority to rule on all questions of order subject to appeal by any member of the School Committee. The question will be, "Will the ruling of the Chair be sustained?" Such appeal, if seconded, will immediately be put to vote, without debate, save that the chair or the presiding officer in the absence of the chair will be permitted two (2) minutes in which to explain the ruling in question. An affirmative vote of the majority vote of those present will be required to reverse a ruling by the chair or the presiding officer in the absence of the chair.
72. Any amendment of these Rules will be proposed at a regular meeting in writing but will not be voted upon before the next meeting.
73. The conduct of the meetings and business of the School Committee will be in accordance with the rules of parliamentary procedure as laid down in the most recently revised edition of Robert's Rules of Order, except as specifically provided elsewhere in these Rules of the School Committee or by law. In accordance with Robert's Rules of Order, the School Committee may suspend parliamentary rules of order by a two-thirds vote. The School Committee does not have the authority to suspend the Open Meeting Law.
74. Pursuant to the provisions of [MGL Chapter 44, §53A](#), the Superintendent or their designee may submit applications for grants or gifts from the federal or state governments, charitable foundations, private corporations, or individuals. Grants or gift awards for educational purposes must be submitted to the School Committee for acceptance and approval prior to expenditure. The submission for approval must include the following:
 - a. The amount and schedule of receipt of funds
 - b. All binding rules, regulations, and reporting requirements that will be placed upon the Medford Public Schools upon acceptance of the funds.
75. The School Committee may bring forward proposed amendments or revisions to these Rules in accordance with rule 46. Any amendments or revisions that are adopted by the School Committee will be incorporated into the text of these Rules of the School Committee upon adoption or a future date specified.
76. All requests passed by the Medford City Council that pertain to the Medford Public Schools will be sent to the School Committee Chair to be reviewed with the Superintendent to determine whether the request can be answered with publicly available information or if the item should be added to the agenda. The Superintendent is authorized to respond to City Council requests, to attend City Council meetings, or perform any actions requested by the City Council with a majority vote of the School Committee.
77. All information, motions, budgets, requests for the appearance of school personnel, etc., passed by the School Committee that pertains to or is in response to the City Council will be sent to the City Council via the City Clerk by the Superintendent in accordance with City Council rules.

Duties of the Secretary

78. The secretary will record attendance and votes taken during regular and special meetings.

79. The secretary will review the warrants on a weekly basis and provide a signature authorizing the payment of payrolls and bills.
80. The secretary will monitor the School Committee email account and forward each communication to all members and the Superintendent in a timely fashion.
81. The secretary, Superintendent, or administrator will actively monitor remote participants to identify when there is a raised hand to speak on an item on our agenda pursuant to policy [BEDH - Public Comment and Presentations of the Public](#). The secretary will ensure the chair is aware when remote participants wish to speak.

Duties of the Superintendent

82. The Superintendent will be present in person or via remote participation at all regular meetings of the School Committee, with the exception of illness, bereavement, or emergency
83. The Superintendent will give the members of the School Committee written notice of all meetings, call special meetings of the School Committee when requested to do so by the Mayor or three or more members of the School Committee, attend the meetings of the School Committee, record its votes and proceedings in a permanent record-keeping system. The Superintendent will ensure that there is an appointed custodian of records and this information will be posted on our website. The Superintendent will ensure that the Minutes are posted on the School Committee web page as soon as they have been approved by the School Committee.
84. The Superintendent will be the custodian of the School Committee's records and other papers and preserve files of communications and documents of the School Committee.
85. The Superintendent will sign any contracts that have been approved by a majority of the School Committee on a roll call vote. A copy of the order approving said contracts will be attached to the signature page of said contracts.
86. The Superintendent, as soon as possible following the certification of the biennial election of the School Committee, will contact any newly elected members to:
 - a. schedule onboarding activities
 - b. offer training
 - c. provide a copy of these rules
 - d. enroll the member with the Massachusetts Association of School Committees
 - e. perform CORI and other background checks
87. Rule 86 will be applied to new members upon a vacancy on the School Committee.
88. The Superintendent will maintain a tracking system, to be made available to the public on the School Committee page of the Medford Public School website, and containing the following information:
 - a. item number
 - b. date of meeting
 - c. date completed

- d. (when applicable) respondent (Superintendent, subcommittee)
- e. text of item
- f. (when applicable) date (if specified) response to be returned to the School Committee
- g. type of response requested (verbal update, written report, presentation, etc.)
- h. (when applicable) subcommittee name
- i. (when applicable) meeting date(s) of subcommittee where the item has been on the agenda
- j. one or more status information containing the following information:
 - i. date of status entry
 - ii. status indicator:
 - 1. pending action
 - 2. in progress
 - 3. completed

Addendums

Addendum I - Add Item to Agenda Procedure

- I. The purpose of this procedure is to provide School Committee members the knowledge to request an item be added to our agenda.

The Massachusetts Open Meeting Law (OML), [MGL Chapter 30A §§18-25](#) is interpreted, effectuated, and enforced through regulations [940 CMR 29.00](#). The timeliness of adding items to the agenda of a public body is regulated by 940 CMR 29.00 and is embedded in this procedure.

It is the responsibility of all School Committee members to understand OML, and members should help each other in the enforcement to ensure no violations occur.

- II. Procedure

Who:

Members will transmit the item to the chair, the Superintendent of Schools, and copy to the Executive Assistant to the Superintendent or designee.

What:

- 1) The agenda item will include the statement to be added to the agenda, usually a sentence or two. You may work with another member on the wording of your item to ensure it makes sense to the membership and the public that will be reading the agenda. The OML requires that the public be able to reasonably understand what will be talked about at the meeting. This means your agenda item must be clear enough for the public to understand.
- 2) The meeting date you would like this on the agenda (optional).
- 3) Supporting documentation can also be included.

When:

An agenda item should be sent at least five normal school days prior to the meeting where you wish to have it addressed. It is best to send the item as early as possible, even if it is several meetings ahead of when you wish to have the item discussed. It is important that an agenda not have so many items on it that the meeting becomes unduly long, and attention to the matters before the School Committee can no longer be handled in a responsible fashion as can happen when a meeting is four or five hours long. It is possible your item may be moved to a subsequent agenda, but this will be communicated to you, see Response.

Where:

Email is the preferred method for adding an item to the agenda.

Why:

This procedure is needed to ensure transparency. One of the first questions of a new member is often ‘how do I get something on the agenda.’ This procedure aims to provide an answer to that question.

Response:

The member will receive a response within three normal school days from the chair, Superintendent, or designee with one of the following:

- 1) Confirmation containing:
 - a) Date the item will be on the agenda
 - b) An explanation for a date different than the one you requested, if you requested a date
 - c) All members of the School Committee will be blind carbon copied on this confirmation
- 2) An objection containing the rationale for not adding this item to the agenda, such as discussing negotiations in open session when those can only be discussed in executive session will be provided.
- 3) Request for more information

III. Objection

If you have had your item not placed on the agenda due to objection from the chair, Superintendent, or designee, or are unsatisfied with the date provided and cannot remedy the situation through dialog with the chair or Superintendent, you may make a motion during the ‘New Business’ part of the next School Committee meeting to request that placing your item on the agenda be considered by the committee. A majority vote of the School Committee overrides the decision not to place your item on the agenda, and your item must be placed on the next agenda. It is important to note that deliberation of the item may not take place during the meeting when such an override occurs as the item is not on the agenda and deliberations would be a violation of OML.

Addendum II - Ad Hoc Report Request Procedure

- I. The purpose of this procedure is to provide School Committee members the knowledge to request an ad hoc report.

Ad hoc reports can require substantial work by the district staff that will create the report. This procedure is in place to ensure that when the School Committee agrees to the creation of such a report that we are able to understand the following:

- i. How much work is required to create the report
- ii. The questions [and the purpose] the report is aiming to answer
- iii. Any specific information that is required
- iv. Determine if there is an existing report, ad hoc or periodic, that provides the answers to the questions being asked

It is the responsibility of all School Committee members to understand this procedure, and members should help each other to ensure compliance.

On February 3, 2020, the School Committee approved the following motion, which has led to the creation of this rule:

“Given that creation of ad hoc reports at the behest of the School Committee can require substantial effort on the part of the office of the Superintendent and district staff; and that the School Committee often depends on ad hoc reports to assist in deliberations; the Rules, Policy, & Equity Subcommittee will generate a new rule for the School Committee to guide how ad hoc report requests are generated.”

II. Terminology

Report Request - the motion to start the process of getting a report created that provides the Superintendent’s office the opportunity to provide the feedback necessary for the committee to understand the feasibility, effort, and any legal or privacy concerns related to a report being created.

Report Analysis - the detailed response from the Superintendent’s office that the committee will use to decide on whether to approve the generation of a report.

III. Report Request Format

- i. Name of the report (required) - a short meaningful title that will allow for it to be referenced in discussions and so that it can be requested in the future if the report is needed again.
- ii. One or more questions the report is attempting to answer (required) - to ensure that the report will actually answer your questions, it is important that you have formulated your questions before requesting the report.
- iii. Background (optional) - anything you think might help shed light on this request.

- iv. Data elements you are expecting (optional) - if you are seeking specific data you must provide what it is you are expecting to receive. Be as precise as possible to prevent a report from needing further clarification after it has been generated.
- v. The date that the report should be provided (required) - the date should not be sooner than possible when following this procedure. If a report is needed in a timeliness that cannot be attained with this rule, then a suspension of the rules is required to circumvent this procedure.

IV. Report Analysis Format

- i. Name of the report (required) - taken from the Report Request.
- ii. Expected effort (required) - effort to generate this report (number of person-hours of labor).
- iii. Feedback (optional) - any important information the School Committee may need to help in assessing whether to approve this report, e.g. we already have this report, the report is available on the DESE website, it is part of a scheduled periodic report, any legal or privacy concerns that such a report may present.
- iv. The earliest date the report could be provided.
- v. Suggested date for the report to be provided.

V. Procedure

- I. Members will complete the Report Request.
- II. The Report Request will be sent per the Add Item to Agenda procedure.
 - a. The Superintendent may choose to fulfill the report request and circumvent this procedure if the report can be generated with very minimal effort.
- III. The Report Request will be considered by the School Committee.
- IV. If the Report Request is approved for analysis by the School Committee:
 - a. The Report Request will go to the Superintendent, where it will be reviewed, and a response will be provided at the next School Committee meeting. This response is the 'Report Analysis.'
 - b. The Report Request with the Report Analysis will be added to the Old Business section of the agenda of the next regularly scheduled School Committee meeting for deliberation on the request.
- V. Report Requests and Report Analyses that are approved but pending action by the Superintendent's office will be included as an item of the regularly scheduled School Committee agenda and contain the details provided in the Report Request and Report Analysis.

Addendum III - The Function of the Medford School Committee

2022 - 2023

Our School Committee aspires to represent the best of Medford and our schools. To this end, we work to meet the needs of all our students and their achievements. While we understand that consensus can be elusive, as we work together, we affirm that:

1. Deliberations of our committee are conducted in accordance with the Open Meeting Law. When directed, one member may publicly report, but no one member of the School Committee may act alone on our behalf. School Committee members may issue public reports when appropriate based upon their roles in a subcommittee.
2. Our superintendent is responsible for operating our schools and for the daily implementation of our policies. Communication to students and families is facilitated and managed by our superintendent.
3. As elected members of the School Committee, we should always engage in civil discourse.
4. We aspire to make our meetings informative and productive. We agree to discuss the issues on the agenda.
5. If a School Committee member acts in a fashion that is unbecoming they may be subject to censure by a two-thirds vote of the body.

Signed: March 21, 2022

Signatures below:

Jenny Graham
Vice-chair

Paul Ruseau
Secretary

Kathy Kreatz

Mea Mustone

Melanie McLaughlin

Sharon Hays

Mayor Breanna Lungo-Koehn
Chair